

Court No. - 39

Case :- WRIT - C No. - 2892 of 2019

Petitioner :- Ashok Kumar Gupta

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Sanjeev Patel

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Sanjeev Patel, learned counsel for the petitioner, Sri R. S. Umrao holding brief of Sri Mahboob Ahmad, learned counsel for the respondent no.4 and the learned Standing Counsel for Respondents no. 1, 2 and 3.

The petitioner in the writ petition is seeking quashing of the impugned demand notice dated 23.02.2018 as well as recovery citation dated 12.11.2018 whereby recovery of Rs.3,50,000/- towards electricity dues is sought to be made from the petitioner.

Counsel for the petitioner states that the matter relates to the disputed bill.

In view of the aforesaid, we are of the view that the petitioner has a remedy under Section 6.5 of the Electricity Supply Code, 2005 by approaching the respondent no.4-Executive Engineer, Purvanchal Vidhyut Vitran Nigam Limited, Electricity Distribution Division, Phaphamau, District Allahabad by way of representation.

This writ petition is **disposed of** with a direction that if the petitioner appears before the respondent no. 4-Executive Engineer, Purvanchal Vidhyut Vitran Nigam Limited, Electricity Distribution Division, Phaphamau, District Allahabad on 31.1.2019 at 11 a.m. personally with the certified copy of this order along with his representation, the respondent no.4 shall provide an opportunity of hearing to the petitioner and decide the representation of the petitioner, in accordance with law, within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, recovery in pursuance of the impugned recovery citation dated 12.11.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.4.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 25.1.2019

Nitin Verma